

**SUPERIOR COURT, STATE OF CALIFORNIA
COUNTY OF SANTA CLARA**

**Department 13
Honorable Daniel T. Nishigaya**

R. Belligan, Courtroom Clerk
191 North First Street, San Jose, CA 95113
Telephone: 408-882-2240

DATE: August 26, 2026

TIME: 10:00 & 10:30 A.M.

**TO CONTEST A TENTATIVE RULING, YOU MUST CALL (408) 808-6856
BEFORE 4:00 P.M. ON THE DAY PRIOR TO THE HEARING.**

You must also inform all other sides to the issue before 4:00 P.M. the day prior to the hearing that you plan to contest the ruling. The Court will not hear argument, and the tentative ruling will be adopted if these notifications are not made. (Cal. Rule of Court 3.1308(a)(1); Civil Local Rule 8.D.)

IN-PERSON APPEARANCES: Department 13 is a fully open courtroom conducting in-person hearings on the days it has scheduled matters. The Court **strongly** encourages **in-person** appearances for any **contested** law-and-motion matter.

REMOTE APPEARANCES: Remote appearance is governed by Civil Local Rule 5 and General Local Rule 9. Department 13 uses UDC as its remote platform. Please click on this link if you need to appear remotely, and then scroll down to click the link for Department 13:

<https://santaclara.courts.ca.gov/online-services/remote-hearings>

The Court **strongly** encourages in-person appearance, but if appearing remotely, **VIDEO IS REQUIRED**. Audio only appearances are not allowed absent exceptional circumstances. (Civil Local Rule 5.B.)

TELEPHONIC APPEARANCE IS PROHIBITED, unless the Court grants an exception. (Civil Local Rule 5.A.) CourtCall is no longer available.

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https://www.scsccourt.org/general_info/court_reporters.shtml.

SCHEDULING MOTION HEARINGS: Go to <https://reservations.scsccourt.org> or call 408-882-2430 between 8:30 a.m. and 12:30 p.m. (Mon.-Fri.) to reserve a hearing date for your motion *before* you file and serve it. You must then file your motion papers no more than five court days after reserving the hearing date, or else the date will be released to other cases.

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LINE #	CASE #	CASE TITLE	RULING
LINE 1	25PR199483	In the Matter of THE STEIBEL FAMILY TRUST	Petitioner's Motion for Reconsideration Ctrl Click (or scroll down) on Line 1 for tentative ruling.
LINE 2	25PR199483	In the Matter of THE STEIBEL FAMILY TRUST	Respondent's Motion to Compel Ctrl Click (or scroll down) on Line 1 for tentative ruling.
LINE 3	25PR199483	In the Matter of THE STEIBEL FAMILY TRUST	Status Review Parties to appear (virtual or in-person)
LINE 4	25PR199483	In the Matter of THE STEIBEL FAMILY TRUST	Petitioner's Motion to Designate Service Address Ctrl Click (or scroll down) on Line 1 for tentative ruling.
LINE 5	25PR199483	In the Matter of THE STEIBEL FAMILY TRUST	Petitioner's Motion for Determination of General Appearance Ctrl Click (or scroll down) on Line 1 for tentative ruling.
LINE 6	25PR199483	In the Matter of THE STEIBEL FAMILY TRUST	Petitioner's Motion to Compel Responses Ctrl Click (or scroll down) on Line 1 for tentative ruling.

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LINE #	CASE #	CASE TITLE	RULING
LINE 7	25PR199694	In the Matter of THE ESTATE OF LASCELLE DE BASILY	Hearing: Demurrer Ctrl Click (or scroll down) on Line 7 for tentative ruling.
LINE 8	25PR199694	In the Matter of THE ESTATE OF LASCELLE DE BASILY	Hearing: Petition Parties to appear (virtual or in-person)
		10:30 a.m. CALENDAR	
LINE 1	23CV420007	In the Matter of NHU TRAN	Motion to Vacate Name Change Order Ctrl Click (or scroll down) on 10:30 Calendar Line 1 for tentative ruling.

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Calendar Lines 1-2, 4-6

Case Name: In the Matter of THE STEIBEL FAMILY TRUST
Case No.: 25PR199483

INTRODUCTION

Petitioner Johnathan Stiebel (“Petitioner”) initiated this action by filing a petition (1) to determine validity of trust, (2) to determine validity of trust amendment, (3) for elder abuse as to the trust restatement, (4) for elder abuse as to the trust amendment, (5) for recovery and transfer of trust property, (6) for intentional interference with expected inheritance, (7) for removal of co-trustees and appointment of neutral fiduciary, (8) for immediate suspension of co-trustees, (9) for imposition of constructive trust, (10) for temporary restraining order, and (11) for preliminary injunction. The petition alleges that settlors Richard and Alice Stiebel executed the Stiebel Family Trust on May 30, 2006. Petitioner is the son of the settlors. The petition named three respondents, David Stiebel (“David”), another son of the settlors, Daniel Mordechai Stiebel, son of David, and Yehuda Schmucl Stiebel, another son of David (collectively, “Respondents”).¹ Daniel Mordechai Stiebel (“Daniel”) and Yehuda Schmucl Stiebel (“Yehuda”) (collectively, “Co-Trustees”) are currently serving as co-trustees of the trust.

Currently before the Court is Daniel’s motion to compel further responses from Petitioner to his special interrogatories, set one, and requests for production of documents, sets one and two. He also requests an order for production of responsive documents. The motion is opposed and Daniel has filed a reply.²

Also before the Court is Petitioner’s motion for reconsideration of the Court’s (Hon. Charles Adams) February 17, 2026 order granting Daniel’s motion to compel initial responses to his requests for production, set three, which is opposed; Petitioner’s motion for order designating service addresses, which is opposed by the Co-Trustees; and Petitioner’s motion for a judicial determination that David Reuben Stiebel has generally appeared in this case and is therefore subject to personal jurisdiction in this Court. This last motion is opposed by Co-Trustees but not by David Stiebel. Finally, Petitioner has filed a motion to compel, which is opposed by Co-Trustees.

¹ Because some of the individuals involved in this case share the same last name, they will be referred to by their first names. No disrespect is intended.

² Petitioner filed two oppositions to the motion. One was filed on February 19, 2026 by Petitioner’s then-counsel. The second was filed on June 23, 2026, after the reply was filed on February 24, 2026. The Court will consider the opposition filed February 19, 2026. Petitioner’s former counsel also filed a declaration in support of the opposition on February 24, 2026. Daniel objects to several portions of the declaration and also seeks to strike it. The Court DENIES the request to strike the declaration and declines to rule on the objections as they are immaterial to the outcome of the motion.

DISCUSSION

I. THE COURT WILL NOT ADDRESS PETITIONER’S UNTIMELY FILINGS AND PETITIONER IS ORDERED TO COMPLY WITH ALL APPLICABLE RULES FOR THE TIMING OF SERVICE AND FILING

Co-Trustees contend that the motion to compel and the motion for a judicial determination that David Reuben Stiebel has generally appeared in this proceeding was not timely filed because they were served by mail on July 27, 2026 in advance of the August 26, 2026 hearing date. Co-Trustees contend that the motions had to be served by July 24, 2026 because they were served by mail. Code of Civil Procedure section 1005, subdivision (b) requires that a motion be served, at a minimum, 16 court days before the hearing on the motion. “However, if the notice is served by mail, the required 16-day period of notice before the hearing shall be increased by five calendar days if the place of mailing and the place of address are within the State of California, 10 calendar days if either the place of mailing or the place of address is outside the State of California but within the United States[.]” (Code Civ. Proc., § 1005, subd. (b).) Here, the motions were served from Massachusetts to Co-Trustees’ counsel in California. Thus, 10 calendar days are added to the notice period. By the Court’s calculations, the motions had to have been served by July 25, 2026, which was a Saturday. Accordingly, the motion had to be served by Friday July 24, 2026. (Code Civ. Proc., § 12a, subd. (a) [“If the last day for the performance of any act provided or required by law to be performed within a specified period of time is a holiday, then that period is hereby extended to and including the next day that is not a holiday. For purposes of this section, ‘holiday’ means all day on Saturdays”].)

Additionally, the motion to compel also was not filed until August 17, 2026, less than 16 court days before the hearing date of August 26, 2026. (Code Civ. Proc., § 1005, subd. (b) [motion must be filed 16 court days before the hearing].) Notably, the Court has discretion to choose not to consider late-filed papers. (Cal. Rules Ct., rule 3.1300(d); *Bozzi v. Nordstrom, Inc.* (2010) 186 Cal.App.4th 755, 765.)

Although Petitioner is proceeding in pro per, pro per litigants are held to the same standards as attorneys. (*Kobayashi v. Superior Court* (2009) 175 Cal.App.4th 536, 543.) Accordingly, Petitioner is admonished to timely file and serve all motions papers.

On August 21, 2026, Petitioner filed a supplemental declaration purportedly lodging his amended responses to “Respondents” requests for production of documents, set three, and a separate document containing the responses.

On August 24, 2026, Petitioner submitted to the Court two sets of filings. The first consists generally of a list of motions that Petitioner contends are on calendar for August 26 and October 21, 2026 in the instant case. The second is a declaration containing a set of supplemental responses to Daniel’s requests for production of documents, sets one and two.

As to the list of motions, it contains motions that have not been received by the Court and no hearing date has been secured. These are entitled, according to Petitioner’s list, “Motion for Protective Order Governing Timing of Service”, “Motion for Order Sequencing Discovery

(Code Civ. Proc., § 2019.020(b))”, and “Proposed wording of Protective Order to Quarantine characterizations of and medical records of Petitioner.” The Court has not received any of these motions and they will not be heard on August 26, 2026. If Petitioner desires to have these motions heard, he must secure a hearing date and timely file and serve them.

As to the documents referring to Petitioner’s discovery responses, the Court declines to consider them as they are untimely. (Cal. Rules Ct., rule 3.1300(d); *Bozzi v. Nordstrom, Inc.*, *supra*, 186 Cal.App.4th at p. 765.)

II. DANIEL’S MOTION TO COMPEL FURTHER RESPONSES

A. PROCEDURAL BACKGROUND

On June 5, 2025, Daniel served his special interrogatories, set one, on Petitioner. Petitioner served his responses on July 9, 2025 and he served amended responses on July 30, 2025.

On June 15, 2025, Daniel served his requests for production of documents, set one. Petitioner served his responses on July 18, 2025.

On July 17, 2025, Daniel served his requests for production of documents, set two. Petitioner served his responses on August 27, 2025.

After multiple attempts to meet and confer, the parties agreed to a final extension of the time for Petitioner to provide his supplemental responses by October 21, 2025 and Daniel to file his motion to compel by October 31, 2025. As of the time the motion was filed on October 29, 2025, Daniel had not received the supplemental responses.

B. LEGAL BACKGROUND

i. INTERROGATORIES

A responding party must provide non-evasive answers to interrogatories that are “as complete and straightforward...to the extent possible,” and, if after a reasonable and good faith effort to obtain the information they still cannot respond fully to an interrogatory, the responding party must so state in its response. (Code Civ. Proc., § 2030.220.)³ If the responding party provides incomplete or evasive answers, or objections without merit, the propounding party’s remedy is to seek a court order compelling a further response to the interrogatories. (§ 2030.300.)

ii. REQUESTS FOR PRODUCTION

A responding party to an inspection demand must respond separately to each item in the demand by stating one of the following: (1) an agreement to comply; (2) a representation of inability to comply, or (3) objections. (§ 2031.210.) Additionally, section 2031.230 requires

³ All further undesignated statutory references are to the Code of Civil Procedure.

that a representation of an inability to comply with the particular demand for inspection must also “affirm that a diligent search and a reasonable inquiry has been made in an effort to comply with the demand.” If a party demanding a response to an inspection demand deems: (1) a statement of compliance with the demand is incomplete; (2) a representation of inability to comply is inadequate, incomplete, or evasive; or (3) an objection in the response is without merit or too general, that party may move for an order compelling further response to the demand. (§ 2031.310, subd. (a).)

In general, a motion for an order compelling further responses to requests for production of documents “shall set forth specific facts showing good cause justifying the discovery sought by the inspection demand.” (§ 2031.310, subd. (b)(1).) In order to establish good cause, the burden is on the moving party to show relevance to the subject matter and specific facts justifying the discovery. (See *Glenfed Develop. Corp. v. Superior Court* (1997) 53 Cal.App.4th 1113, 1117.) Once a showing of good cause is made, the burden shifts to the opposing party to justify his or her objections. (See *Kirkland v. Superior Court* (2002) 95 Cal.App.4th 92, 98.)

As to production of responsive documents, if a party responding to a request for production, “thereafter fails to permit the inspection, copying, testing, or sampling in accordance with that party’s statement of compliance, the demanding party may move for an order compelling compliance.” (§ 2031.320, subd. (a).)

C. MERITS OF THE MOTION

Daniel asserts that Petitioner provided boilerplate responses to his discovery requests, rendering them non-responsive, and he interposed unmeritorious objections. He further asserts that the responses are evasive and incomplete. He also maintains that Petitioner responded to some of the requests for production with privilege objections but failed to provide a privilege log.

At the outset, the Court notes that it is not entirely clear what relief Daniel seeks. The notice of motion seems to request supplemental responses to all of Daniel’s special interrogatories, set one, and requests for production of documents, sets one and two. The separate statement also seems to seek further responses to all requests. But, the memorandum of points and authorities only mentions certain specific requests. As the separate statement is the most comprehensive document and tracks the Notice, the Court will assume that Daniel is seeking further responses to all discovery requests encompassed in special interrogatories, set one, and requests for production of documents, sets one and two.

Petitioner contends that Daniel failed to provide a declaration supporting his decision to serve more than 35 special interrogatories as required by section 2030.050. (See § 2030.030, subds. (a)(1) [party may serve up to 35 special interrogatories as a matter of right], (c) [“Unless a declaration as described in Section 2030.050 has been made, a party need only respond to the first 35 specially prepared interrogatories served, if that party states an objection to the balance, under Section 2030.240, on the ground that the limit has been exceeded.”].) On reply, Daniel has provided the declaration of his counsel establishing that the required declaration was served with the special interrogatories. Moreover, Petitioner did not object to the special interrogatories exceeding 35 in his initial or supplemental responses to same. Accordingly, this argument is waived. (*Scottsdale Ins. Co. v. Super. Ct.* (1997) 59 Cal.App.4th 263, 273 (*Scottsdale*) [waiver occurs where the responding party fails to timely raise an objection in its

initial response]; *Catalina Island Yacht Club v. Superior Court* (2015) 242 Cal.App.4th 1116, 1125 (*Catalina*).)

Petitioner urges the Court to find that the discovery is overly burdensome due to Petitioner's disability. But, the Court agrees with Daniel that Petitioner may not reproduce the same factual response in connection with multiple discovery requests, as it renders the responses non-responsive and deficient. (See § 2030.220, subd. (a) ["Each answer in a response to interrogatories shall be as complete and straightforward as the information reasonably available to the responding party permits."].) Petitioner has initiated the instant case and Co-Trustees, as respondents, are entitled to discovery regarding the underlying factual allegations in Petitioner's petition. That said, the Court orders both parties to attempt to act cooperatively to facilitate discovery, including allowing reasonable requests for additional time to respond. But further responses must be given.

As to the interrogatories seeking identification of documents supporting Petitioner's contentions, Petitioner argues that these interrogatories go beyond merely seeking identification of documents but also require him to state why they support Petitioner's contentions and in what manner they will be used. Petitioner does not identify which interrogatories purportedly require this information. In the Court's view, the interrogatories do not request such information. Instead, they request that Petitioner state all facts on which he bases certain contentions, identify all documents supporting those same contentions, and identify the witnesses (and provide contact information for the witnesses) to the facts underlying those contentions. These are proper contention interrogatories. "The purpose of pretrial discovery is to obtain all of the facts relative to a claim or defense. [Citation.] A party responding to discovery requests may be required to state *whether or not he or she makes a particular contention, and to disclose the evidentiary facts underlying each such contention, as well as each allegation of his complaint or affirmative defense.*" (*Hernandez v. Superior Court* (2003) 112 Cal.App.4th 285, 301 (*Hernandez*), italics added.)

As to the requests for production, Petitioner does not assert that Daniel has not met his burden of stating good cause for the further responses sought. The Court finds that the document requests are relevant to the subject matter of the instant proceeding. In opposition to the motion, Petitioner states that he has provided all documents in his possession but where he has not provided such documents, it is because he does not have such documents in his possession, custody, or control. If that is the case, Petitioner must say so in the response and indicate that a diligent search has been made in an effort to comply. (See §§ 2031.210 [one possible answer to requests for production is a representation of inability to comply; 2031.230 [requiring that a representation of an inability to comply with the particular demand for inspection must also "affirm that a diligent search and a reasonable inquiry has been made in an effort to comply with the demand."].) Moreover, Daniel is correct that the document production must identify the request to which the documents correspond. (See § 2031.280, subd. (a) ["Any documents or category of documents produced in response to a demand for inspection, copying, testing, or sampling shall be identified with the specific request number to which the documents respond."].)

As to Petitioner's general objections to both the special interrogatories and the requests for production, the Court finds that the privilege-based objections are preserved. (See *Catalina*, *supra*, 242 Cal.App.4th at p. 1129 ["the court may not overrule a privilege objection unless it receives sufficient information to decide whether the objection has merit"].) As to the

objections that Daniel seeks to have Petitioner do more than is required by the Code of Civil Procedure, the overbreadth and burden objections, these are OVERRULED. As to the premature disclosure of expert opinion, vagueness, and relevance objections, Petitioner did not attempt to justify these objections in the opposition. Accordingly, they are waived. (See *Coy v. Super. Ct.* (1962) 58 Cal.2d 210, 220-221; see also *Fairmont Ins. Co. v. Super. Ct.* (2000) 22 Cal.4th 245, 255; *Catalina, supra*, 242 Cal.App.4th at p. 1129 [boilerplate objections raised in initial responses are sufficient to preserve privilege-based objections].) Petitioner's objections made in response to each specific request for production, other than those based on privilege, are also waived as Petitioner has not defended them in his opposition to the motion.

The motion is GRANTED. The Court orders Petitioner to provide further responses to the entirety of Daniel's special interrogatories, set one, and requests for production of documents, sets one and two, with objections other than those based on privilege removed.

To the extent Petitioner has responded with privilege-based objections and is withholding documents based on those objections, Petitioner is ordered to provide a privilege log. (See *Hernandez, supra*, 112 Cal.App.4th at pp. 291-292 [generally, a privilege log must identify each document for which a privilege is claimed, its author, recipients, date of preparation, and the specific privilege claimed]; *id.* at p. 292 ["The purpose of a 'privilege log' is to provide a specific factual description of documents in aid of substantiating a claim of privilege in connection with a request for document production. [Citation.] The purpose of providing a specific factual description of documents is to permit a judicial evaluation of the claim of privilege. [Citations.].")

Daniel has requested that the Court order that Petitioner provide the supplemental responses, privilege log, and responsive documents within 20 days but, given the sheer number of responses at issue, the Court will order that Petitioner provide the further responses and privilege log, as described above within 90 days of service of the Court's order on this motion. The Court also orders that Petitioner provide all non-privileged responsive documents, to the extent they have not already been produced, within 90 days of service of the Court's order on this motion. The Court encourages the parties to meet and confer should extensions of the time in which to complete the above orders be necessary.

Daniel also requests sanctions in the amount of \$6,360 consisting of 12 hours of attorney time at \$525 per hour for a total of \$6,300, plus a \$60 filing fee. Section 2030.300, subdivision (d), and section 2031.310, subdivision (h) each provides that the court "shall impose a monetary sanction ... against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel a further response[.]" unless "it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust." Here, due to Petitioner's financial condition, the Court finds that imposition of sanctions would be unjust. Accordingly, Daniel's request for sanctions is DENIED.

Petitioner also requests sanctions in an unspecified amount. Given that the motion has been granted, Petitioner's request for sanctions is DENIED.

D. CONCLUSION

The motion to compel further responses is GRANTED. Both parties' requests for sanctions are DENIED.

III. PETITIONER'S MOTION FOR RECONSIDERATION AND RELIEF FROM WAIVER

A. PROCEDURAL BACKGROUND

Daniel served his requests for production of documents, set three, on December 3, 2025. Responses were due on January 6, 2026. When he did not receive responses before the deadline, Co-Trustees' counsel sent a meet and confer letter to Petitioner's counsel. Co-Trustees filed the instant motion on January 20, 2026. The motion, which was not opposed by Petitioner, was heard on February 13, 2026. The Court (Hon. Charles Adams) granted the motion and ordered Petitioner to provide Petitioner objection-free, code-compliant verified responses to Daniel's requests for production of documents, set three within 60 days.⁴

On December 4, 2025, Petitioner's counsel filed a motion to withdraw as counsel. The Court (Hon. Charles Adams) granted that motion via written order signed February 11, 2026 and filed February 18, 2026.

On February 17, 2026, Petitioner filed the instant motion.

B. LEGAL BACKGROUND

i. RECONSIDERATION

"Section 1008, subdivision (a) requires that a motion for reconsideration be based on new or different facts, circumstances, or law. A party seeking reconsideration also must provide a satisfactory explanation for the failure to produce the evidence at an earlier time. [Citation.]" (*New York Times Co. v. Superior Court* (2005) 135 Cal.App.4th 206, 212.) "The burden under section 1008 is comparable to that of a party seeking a new trial on the ground of newly discovered evidence: the information must be such that the moving party could not, with reasonable diligence, have discovered or produced it at the trial. [Citation.]" (*Id.* at pp. 212-213.)

Thus, a motion to reconsider was properly granted where it was supported by newly-produced documents which had been requested but not produced at the time of the earlier hearing. (*Hollister v. Benzl* (1999) 71 Cal.App.4th 582, 585.) "New circumstances" were shown by evidence the court failed to consider a timely-filed memorandum of points and authorities in its prior ruling. (*Johnston v. Corrigan* (2005) 127 Cal.App.4th 553, 556.)

⁴ The Court later stayed the effect of this order pending hearing and decision on the motion for reconsideration.

ii. **SECTION 473**

Section 473, subdivision (b), on which Petitioner relies, states:

The court may, upon any terms as may be just, relieve a party or the party's legal representative from a judgment, dismissal, order, or other proceeding taken against the party through the party's mistake, inadvertence, surprise, or excusable neglect. Application for this relief shall be accompanied by a copy of the answer or other pleading proposed to be filed therein, otherwise the application shall not be granted, and shall be made within a reasonable time, in no case exceeding six months, after the judgment, dismissal, order, or proceeding was taken. . . . Notwithstanding any other requirements of this section, the court shall, whenever an application for relief is made no more than six months after entry of judgment, is in proper form, and is accompanied by an attorney's sworn affidavit attesting to the attorney's mistake, inadvertence, surprise, or neglect, vacate any (1) resulting default entered by the clerk against the attorney's client, and which will result in entry of a default judgment, or (2) resulting default judgment or dismissal entered against the attorney's client, unless the court finds that the default or dismissal was not in fact caused by the attorney's mistake, inadvertence, surprise, or neglect. The court shall, whenever relief is granted based on an attorney's affidavit of fault, direct the attorney to pay reasonable compensatory legal fees and costs to opposing counsel or parties.

iii. **RELIEF FROM WAIVER**

The party to whom the demand for inspection, copying, testing, or sampling is directed waives any objection to the demand, including one based on privilege or on the protection for work product under Chapter 4 (commencing with Section 2018.010). The court, on motion, may relieve that party from this waiver on its determination that both of the following conditions are satisfied:

(1) The party has subsequently served a response that is in substantial compliance with Sections 2031.210, 2031.220, 2031.230, 2031.240, and 2031.280.

(2) The party's failure to serve a timely response was the result of mistake, inadvertence, or excusable neglect.

(Code Civ. Proc., § 2031.300, subd. (a).)

iv. **MERITS OF THE MOTION**

Petitioner moves for reconsideration of the Court's order granting the Co-Trustees' motion to compel responses to their requests for production of documents. Petitioner concurrently moves for relief from waiver, which occurred via operation of statute when he failed to timely respond to the requests for production. (§ 2031.300, subd. (a) [a party who fails to serve timely responses to a request for production or inspection of documents "waives 'any objection to the demand, including one based on privilege or on the protection for work product under Chapter 4 (commencing with Section 2018.010).']"; see also *Scottsdale*, *supra*, 59 Cal.App.4th at p. 273 [waiver occurs where the responding party fails to timely raise an objection in its initial response]; *Catalina*, *supra*, 242 Cal.App.4th at p. 1125.) Petitioner

contends that he suffers from mental and physical health issues making the process of responding to discovery difficult and burdensome. He also contends that his then-counsel was unable to respond to the discovery requests or make any requests on Petitioner's behalf at the time the motion to compel was initially filed because he had filed a motion to withdraw due to a mandatory conflict of interest. Finally, he maintains that the Court did not have his discovery responses at the time.

The Court notes at the outset, that the motion is deficient because it was not accompanied by an affidavit indicating what new or different facts, circumstances, or law are claimed to be shown. "The party making the application shall state by affidavit what application was made before, when and to what judge, what order or decisions were made, and what new or different facts, circumstances, or law are claimed to be shown." (§ 1008, subd. (a).) Additionally, the Court agrees with Co-Trustees that Petitioner has not established that circumstances have changed such that reconsideration is appropriate. Petitioner's health condition was known at the time of the challenged order and, although it may have made the discovery process more difficult, it does not compel reconsideration here.

The motion to withdraw as counsel had also already been filed at the time the motion to compel was filed. Notably, the motion to withdraw did not indicate that counsel had a mandatory conflict of interest; it relied on Rules of Professional Conduct 1.16, which states the bases for mandatory and discretionary withdrawal, and indicated that there had been a breakdown in the attorney-client relationship and that "ethical considerations require withdrawal." Nonetheless, Petitioner's former counsel has filed a declaration in support of the motion for reconsideration in which he indicates that the reason for the withdrawal was a mandatory conflict of interest. Presumably, the issue of the mandatory conflict must have been known at the time the motion to withdraw was filed because former counsel now indicates that that was the reason for the request to withdraw. Thus, that issue could have been presented to the Court at the time. Yet, neither Petitioner's former counsel nor his counsel at the time opposed the motion to compel, moved to continue the hearing on the motion to compel, sought a protective order, or even contested the tentative ruling granting the motion to compel.⁵

Finally, Petitioner appears to argue that the Court was not aware of the private nature of some of the discovery requests at issue and he contends that the Court now has the benefit of his responses to the request and can see that the requests seek information protected by the constitutional right to privacy. But, the Court had before it the requests for production at issue at the time it issued its order granting the motion as the requests were attached to Co-Trustees' counsel's declaration in support of the motion.⁶ The requests sought medical information and

⁵ A substitution of counsel form was filed February 11, 2026, two days before the hearing on the motion to compel. While Petitioner's new counsel could not have timely opposed the motion, he could have contested the tentative ruling. Nonetheless, the Court entertained oral argument at the hearing on the motion to compel but ultimately adopted the tentative ruling.

⁶ As the Court found in its order granting Daniel's motion, when a party fails to timely respond to discovery requests, all objections, even those based on privilege, are waived. (See § 2031.300, subd. (a) [a party who fails to serve timely responses to a request for production or inspection of documents "waives 'any objection to the demand, including one based on privilege or on the protection for work product under Chapter 4 (commencing with Section 2018.010).']].)

cases have recognized that “a patient has a privacy interest in a doctor’s medical records pertaining to the patient’s physical or mental condition.” (*Lantz v. Superior Court* (1994) 28 Cal.App.4th 1839, 1853, disapproved of on another ground by *Williams v. Superior Court* (2017) 3 Cal.5th 531.) Thus, this fact was known when the challenged order was made. Reconsideration under section 1008 is therefore inappropriate.

Petitioner also relies on section 473, subdivision (b). Section 473, subdivision (b) contains both discretionary and mandatory provisions. (*Huh v. Wang* (2007) 158 Cal.App.4th 1406, 1414.) Co-Trustees correctly assert that no default judgment or dismissal has been entered and thus, the mandatory provision of section 473, subdivision (b) does not apply. (See *id.* at p. 1415 [“By its express terms, the mandatory relief provision applies only to defaults, default judgments, and dismissals” or procedural equivalents.])

As to the discretionary provision of section 473, subdivision (b), “ ‘[i]n order to qualify for [discretionary] relief under section 473, the moving party must act diligently in seeking relief and must submit affidavits or testimony demonstrating a reasonable cause for the default.’ [Citation.] In other words, the court’s ‘discretion may be exercised only after the party seeking relief has shown that there is a proper ground for relief, and that the party has raised that ground in a procedurally proper manner, within any applicable time limits.’ [Citation.] [¶] A party seeking discretionary relief on the ground of attorney error must demonstrate that the error was excusable, since the attorney’s negligence is imputed to the client. [Citation.] ‘The inexcusable neglect of an attorney is usually not a proper basis for granting the client’s motion under section 473.’ [Citation.] ‘Excusable neglect is that neglect which might have been the act of a reasonably prudent person under the same circumstances.’ [Citation.]” (*Id.* at p. 1419.)

Petitioner’s former counsel indicates that he did not believe that he could take any “substantive” action on behalf of Petitioner in light of the mandatory conflict. (Declaration of Daniel D. Hollingsworth in Support of Motion for Reconsideration, ¶ 14.)⁷ Thus, he did not serve responses to the requests for production, oppose the motion to compel, or seek a continuance of the hearing on that motion.

“Generally, an attorney has a right to end the attorney-client relationship, but when litigation remains pending, the court has control over such termination, in part to ensure that the client is not harmed—for example, by abandonment of counsel on the eve of trial. An attorney cannot end the relationship simply by ‘ceas[ing] to act’ as counsel [citation]. [Citations.] In ruling on a motion to withdraw, a trial court exercises discretion. [Citations.] . . . Therefore, until a motion to withdraw is granted, it cannot be certain that the trial court will sever the attorney-client relationship.” (*Flake v. Neumiller & Beardslee* (2017) 9 Cal.App.5th 223, 230; *Hensley v. Caietti* (1993) 13 Cal.App.4th 1165, 1170 [“In general an attorney ‘continues to represent’ the client in pending litigation until the representation is terminated ‘by operation of law, withdrawal or discharge.’ [Citation]”]; *Lockley v. Law Office of Cantrell, Green, Pekich, Cruz & McCort* (2001) 91 Cal.App.4th 875, 887-888 [“The general rule is that

⁷ Co-Trustees object to multiple portions of Petitioner’s former counsel’s declaration. The Court overrules the objections to paragraph 14, to which Co-Trustees interposed objections based on improper legal conclusion, speculation, and lack of foundation. Paragraph 14 reflects *counsel’s belief* that he could not file motions on Petitioner’s behalf. Accordingly, the objections are without merit. The Court declines to rule on the remainder of the objections as they have no bearing on the outcome of the motion.

the attorney's representation does not end 'until the agreed tasks or events have occurred, the client consents to termination or a court grants an application by counsel for withdrawal.' [Citation.]"). Accordingly, Petitioner's former counsel should have at least timely requested a continuance of the hearing on the underlying motion.

In light of the above authority, the Court finds that the neglect or mistake was not excusable. "It is well settled that relief may be granted for mistake of law by a party's attorney. [Citation.] An honest mistake of law is a valid ground for relief where a problem is complex and debatable. [Citation.] The issue of which mistake of law constitutes excusable neglect presents a question of fact. The determining factors are the reasonableness of the misconception and the justifiability of lack of determination of the correct law. [Citation.]" (*Brochtrup v. Intep* (1987) 190 Cal.App.3d 323, 329.) "In determining whether the attorney's mistake or inadvertence was excusable, the court inquires whether a reasonably prudent person under the same or similar circumstance might have made the same error." (*Toho-Towa Co., Ltd. v. Morgan Creek Productions, Inc.* (2013) 217 Cal.App.4th 1096, 1112, internal quotation marks omitted.) Here, a significant amount of authority exists indicating that the attorney must continue to represent the client until the Court grants the motion to withdraw. (*Ibid.* [unreasonable mistake is not excusable neglect].) Accordingly, the motion under the discretionary provision of section 473, subdivision (b) is DENIED. For the same reason, and because the predicate mechanism for consideration of the motion for relief from waiver (i.e., the requests for reconsideration and relief under section 473) has been denied, the motion for relief from waiver is also DENIED. (See *Scottsdale Ins. Co. v. Superior Court* (1997) 59 Cal.App.4th 263, 275 [conduct not amounting to excusable mistake or neglect does not justify relief from waiver].)

The motion for reconsideration is DENIED. Nonetheless, the Court orders Co-Trustees' counsel not to disseminate any discovery responses or documents counsel may receive containing Petitioner's medical information with anyone other than the Court and Court staff and any experts, employees, or agents employed by Co-Trustees or their counsel for the purposes of the instant litigation. Co-Trustees' counsel must use any responses or documents containing Petitioner's medical information for any purpose other than the instant litigation and counsel must destroy the documents containing medical information at the conclusion of this litigation.

IV. PETITIONER'S MOTION FOR ORDER DESIGNATING SERVICE ADDRESSES

At the outset, the Court notes that Petitioner's proof of service filed June 16, 2026 does not indicate that he served Co-Trustees' counsel and, although Co-Trustees have filed an opposition to the motion, they indicate that their counsel was never served. "Whenever a document is required to be served on a party, the service must be made on the party's attorney if the party is represented." (Cal. Rules of Court, rule 1.21(a).) Accordingly, Petitioner is admonished to serve all motions on Co-Trustees' counsel even if the motions only concern Co-Trustees in their individual capacity.

Petitioner asserts that none of the Respondents (David, Daniel, and Yehuda) have appeared in this action in their individual capacity. He maintains that Respondents have provided various email addresses and physical addresses via Decedent's death certificate (listing a physical address for David), Decedent's power of attorney (listing a physical address for David), and the Co-Trustees' Probate Code section 16061.7 notice (listing a physical

address for the trust administration). He seeks an order “(1) Designating postalcode@post.cz and baseballfield@gmx.net as alternative email addresses of record for DAVID REUBEN STIEBEL in his individual capacity; (2) Designating dan.stebes@mail.be as email address of record for DANIEL MORDECHAI STIEBEL in his individual capacity; (3) Designating snail@contactoffice.com as email address of record for YEHUDA SHMUEL STIEBEL in his individual capacity; (4) Directing that service upon each Respondent individually shall be accomplished by either: (a) email to any designated address; or (b) physical mail to any authenticated address of record each method independently constituting effective service[.]” (Notice of Motion, formatting altered.)

Petitioner contends that section 413.30 authorizes court-directed service by electronic mail upon a showing of reasonable diligence. That section provides, “If no provision is made in this chapter or other law for the service of summons, or if a plaintiff, despite exercising reasonable diligence, has been unable to effect service of the summons by any of the methods authorized under this chapter, the court in which the action is pending may, upon motion, direct that summons be served in a manner that is reasonably calculated to give actual notice to the party to be served, including by electronic mail or other electronic technology, and that proof of such service be made as prescribed by the court.” (Code Civ. Proc., § 413.30, subd. (a)(1).) But, it also provides, “A plaintiff seeking to establish reasonable diligence under this section shall set forth facts detailing all attempts to serve the defendant by each of the methods prescribed by statute, including facts demonstrating why each method was unsuccessful at every address or location where the defendant is likely to be found.” (Code Civ. Proc., § 413.30, subd. (a)(2).) Petitioner has not met this burden as his evidence does not show attempts to serve Respondents, in their individual capacities. Petitioner provides only a copy of his Petition to Determine Validity of Trust filed on March 25, 2025, which he contends lists the parties entitled to notice. (See Declaration of Jonathan Stiebel in Support of Motion, ¶ 5; Petitioner’s Exhibits, Ex. D, pp. 17-18.) But, the petition does not establish that service was made on those individuals listed, let alone that they were properly served under the relevant authorities; it merely lists those entitled to service. (See *Quantum Cooking Concepts, Inc. v. LV Assocs., Inc.* (2011) 197 Cal.App.4th 927, 934 [stating that the trial court is not required to “comb the record and the law for factual and legal support that a party has failed to identify or provide”].) The Court further declines to exercise any inherent authority it may have over service of process in the manner requested on this record, which establishes no attempts to serve Respondents in their individual capacity pursuant to the standard methods of service. (See § 128, subd. (a)(4).)

Petitioner’s request for findings in order to enforce the ultimate judgment in this case is premature. Petitioner asserts that section 6(a)(2) of the Israeli Foreign Judgments Enforcement Law, 5718-1958 requires certain findings regarding notice to enforce a foreign judgment in Israel and that he seeks an order that forecloses an argument under section 6(a)(2) before it is raised. But, here, no judgment has yet been entered and there is currently nothing to enforce. It is the judgment itself that should contain the requisite findings if they can be made based on the record before the Court at that time. Accordingly, this request is not ripe. (See *Wilson & Wilson v. City Council of Redwood City* (2011) 191 Cal.App.4th 1559, 1573 [“courts will not entertain an action which is not founded on an actual controversy”].)

The motion is DENIED.

**V. PETITIONER’S MOTION FOR JUDICIAL DETERMINATION THAT DAVID REUBEN
STIEBEL HAS GENERALLY APPEARED IN THIS PROCEEDING**

Petitioner seeks a judicial determination that David Reuben Stiebel has generally appeared in this case and is therefore subject to personal jurisdiction in this Court. The main thrust of Petitioner’s argument is that David Stiebel made a general appearance by filing a motion to compel on October 29, 2025.

“A defendant submits to the court’s jurisdiction by making a general appearance in an action and thereby waives the defense of lack of personal jurisdiction. [Citation.] ‘ “A general appearance occurs when the defendant takes part in the action or in some manner recognizes the authority of the court to proceed.” [Citation.] Such participation operates as consent to the court’s exercise of jurisdiction in the proceeding. “Unlike jurisdiction of the subject matter ... jurisdiction of the person may be conferred by consent of the person, manifested in various ways” including a “general appearance.” [Citations.] By generally appearing, a defendant relinquishes all objections based on lack of personal jurisdiction or defective process or service of process. [Citations.]’ [Citation.]” (*ViaView, Inc. v. Retzlaff* (2016) 1 Cal.App.5th 198, 210.)

“A defendant appears in an action when the defendant answers, demurs, files a notice of motion to strike, files a notice of motion to transfer pursuant to Section 396b, moves for reclassification pursuant to Section 403.040, gives the plaintiff written notice of appearance, or when an attorney gives notice of appearance for the defendant.” (Code Civ. Proc., § 1014.) “Courts have generally agreed that this definition is not exclusive. [Citation.] Thus a general appearance need not be ‘ “a formal, technical step or act...” ’ [Citation]; rather the term may apply to various acts which, under all of the circumstances, are deemed to confer jurisdiction of the person. [Citation.] What is determinative is whether defendant takes a part in a particular action which in some manner recognizes the authority of the court to proceed. [Citations.]” (*Sanchez v. Super. Ct.* (1988) 203 Cal.App.3d 1391, 1397.)

Co-Trustees assert that their counsel served a draft version of the motion to compel filed October 29, 2025, which inadvertently named David in the body of the motion but their counsel does not represent David and did not have his permission to file anything on his behalf. (See Declaration of Avery Dotterer, ¶¶ 4-6.) The copy of the motion filed on October 29, 2025 with the Court does not bear David’s name in the capacity as the moving party.⁸ The version of the October 29, 2025 motion Petitioner has attached as Exhibit I to his motion states, “Respondent DANIEL MORDECHAI STIEBEL, brings this motion to compel further responses to Special Interrogatories, Set One, Request for Production of Documents, Set One, and Request for Production of Documents, Set Two, all as to Petitioner JONATHAN STIEBEL.” (Motion, Ex. I, p. 1:25-27.) But, then it goes on to state, “David Stiebel brings this motion because” (Id., p. 1:28.)

⁸ David is mentioned in various portions of the documents supporting the motion but the motion clearly indicates that it is brought by the Co-Trustees. The Court takes judicial notice of the motion to compel filed with the Court on October 29, 2025 on its own motion.

It is clear that the use of David's name on the October 29, 2025 motion to compel is a typo and not a basis for this Court to exercise jurisdiction over David. To extent Petitioner argues that David has made a personal appearance or that the Court may exercise personal jurisdiction over David solely because he has failed to file a motion to quash, that argument is also rejected. Failure to file a motion to quash does not waive defects in service unless the defendant has also made a general appearance. (See, e.g. Code Civ. Proc., § 418.10, subd. (e)(3) ["Failure to make a motion under this section *at the time of filing a demurrer or motion to strike* constitutes a waiver of the issues of lack of personal jurisdiction, inadequacy of process, inadequacy of service of process, inconvenient forum, and delay in prosecution."], italics added.)

The motion is DENIED.

VI. PETITIONER'S MOTION TO COMPEL

Petitioner moves to compel initial responses to his special interrogatories, set two, to Daniel, requests for production, set two, to Daniel, and special interrogatories, set one to Yehuda. He also seeks an order deeming the matters stated in his requests for admission, set one, admitted.

A. PROCEDURAL BACKGROUND

Petitioner asserts that on June 18, 2026 he served by U.S. mail his requests for admission, set one, to Daniel (Nos. 1-35); requests for admission, set one, to Yehuda (Nos. 1-35); special interrogatories, set two, to Daniel (Nos. 6-35); special interrogatories, set one, to Yehuda (Nos. 1-35); and requests for production, set two, to Daniel (Nos. 27-61). The discovery requests were received on June 22, 2026.⁹

B. LEGAL BACKGROUND

"Unlike a motion to compel further responses, a motion to compel responses is not subject to a 45-day time limit" (*Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants* (2007) 148 Cal.App.4th 390, 404 (*Sinaiko*).) There is no meet and confer requirement or time limit for bringing a motion to compel initial discovery responses, and the moving party need only show that the discovery was properly served and a timely response was not provided. (See Code Civ. Proc., §§ 2030.290 [interrogatories]; 2031.300 [requests for production of documents]; 2033.280 [requests for admission]; *Sinaiko, supra*, 148 Cal.App.4th at pp. 410-411; *Leach v. Superior Court* (1980) 111 Cal.App.3d 902, 905-906.) No separate statement is required. (Rules of Court, rule 3.1345(b).)

⁹ Co-Trustees contend in their opposition that Petitioner is also seeking initial responses to Petitioner's requests for production set three, number 62 and they maintain that no such discovery request was ever served. The notice of motion filed with the Court of August 17, 2026 seeks a response to that request but the memorandum of points and authorities makes no mention of it. Moreover the proof of service Petitioner asserts shows service of that document on Daniel does not mention that document. (See Declaration of Jonathan Stiebel in Support of Motion to Compel ("Jonathan Decl."), ¶ 3, Ex. B-1.) Accordingly, the motion is DENIED to the extent it is seeking an initial response to that request for production.

Generally, when a party has failed to timely provide initial responses to the discovery requests at issue, he or she has waived any objection to them. (§§ 2030.290, subd. (a) [A party who fails to serve timely responses to interrogatories waives any objections to the requests, including those based on privilege or the work product doctrine.]; 2031.300, subd. (a) [a party who fails to serve timely responses to a request for production or inspection of documents “waives ‘any objection to the demand, including one based on privilege or on the protection for work product under Chapter 4 (commencing with Section 2018.010).”]; 2033.280, subd. (a) [A party who fails to serve timely responses to a request for admissions waives any objections to the requests, including those based on privilege or the work product doctrine]; see also *Scottsdale*, *supra*, 59 Cal.App.4th at p. 273 [waiver occurs where the responding party fails to timely raise an objection in its initial response]; *Catalina Island Yacht Club v. Superior Court* (2015) 242 Cal.App.4th 1116, 1125.)

“If a party to whom requests for admission are directed fails to serve a timely response, the following rules apply: . . . [t]he requesting party may move for an order that the genuineness of any documents and the truth of any matters specified in the requests be deemed admitted . . .” (Code Civ. Proc., § 2033.280, subd. (b).) “The court shall make this order, unless it finds that the party to whom the requests for admission have been directed has served, before the hearing on the motion, a proposed response to the requests for admission that is in substantial compliance with Section 2033.220.” (Code Civ. Proc., § 2033.280, subd. (c).)

C. MERITS OF THE MOTION

Petitioner contends that he did not timely receive responses to the above-described discovery. Thus, he seeks initial, objection-free responses to the special interrogatories and requests for production and he seeks an order deeming the matters stated in the requests for admissions admitted. He maintains that Co-Trustees admitted that the responses were due July 22, 2026 in their opposition to another of Petitioner’s filings. (See Jonathan Decl., Exs. C-1&C-2 [stating that Petitioner has served discovery requests with responses demanded by July 22, 2026 and requesting that Court toll July 22, 2026 “deadline”].)

Co-Trustees contend that they timely served their responses to the discovery requests at issue on July 27, 2026. Specifically, they assert that the statutory deadline for responses to the discovery requests at issue is 30 days from service of the request. (See Code Civ. Proc., §§ 2030.260, subd. (a) [interrogatories]; 2031.260, subd. (a) [requests for production]; 2033.250, subd. (a) [requests for admission].) But, because the discovery requests were served by mail, they allege that Code of Civil Procedure section 1013 applies to extend the statutory deadlines. Here, the discovery requests were served by mail from Massachusetts to Co-Trustees’ counsel in California. Thus, the time in which to serve the requests was extended by 10 calendar days. (See Code Civ. Proc., § 1013, subd. (a) [“any period of notice and any right or duty to do any act or make any response within any period or on a date certain after service of the document, which time period or date is prescribed by statute or rule of court, shall be extended . . . 10 calendar days if either the place of mailing or the place of address is outside the State of California but within the United States”].) The Court agrees with Co-Trustees that the responses were timely served.

As to Petitioner’s argument that the statements Co-Trustees made in their opposition, the Court finds that these statements cannot constitute judicial admissions. “Judicial admissions may be made in a pleading, by stipulation during trial, or by response to request for admission. [Citations.] Facts established by pleadings as judicial admissions are conclusive

concessions of the truth of those matters, are effectively removed as issues from the litigation, and may not be contradicted, by the party whose pleadings are used against him or her. [Citations.]” (*Myers v. Trendwest Resorts, Inc.* (2009) 178 Cal.App.4th 735, 746, internal quotation marks omitted.) “Not every document filed by a party constitutes a pleading from which a judicial admission may be extracted.” (*Ibid.* [statement made in statement of undisputed material facts in support of summary judgment motion not a judicial admission].) Here, the statement was made in an opposition to a request made by Petitioner. It was not made in a pleading. (See Cal. Rules of Court, rule 7.3 [“ ‘Pleading’ means a contest, answer, petition, application, objection, response, statement of interest, report, or account filed in proceedings under the Probate Code.”].)

Even assuming that the responses were untimely served, they have now been served and Petitioner has not argued that they are in any way deficient. Accordingly, the motion is moot as it relates to the request for initial responses. Additionally, the Court cannot grant the motion to deem the matters stated in the requests for admission admitted due to the service of responses to the requests for admission prior to the hearing date. (Code Civ. Proc., § 2033.280, subd. (c).) The motion is DENIED as moot.

D. PETITIONER’S REQUEST FOR SANCTIONS

Petitioner requests sanctions in the amount of \$60 for the fee incurred in filing the instant motion. Because the motion is denied, the request for sanctions is also DENIED.¹⁰

CONCLUSION

Daniel’s motion to compel further responses is GRANTED as discussed above. Both parties’ requests for sanctions are DENIED.

Petitioner’s motion for reconsideration is DENIED. Nonetheless, the Court orders Co-Trustees’ counsel not to disseminate any discovery responses or documents counsel may receive containing Petitioner’s medical information with anyone other than the Court and Court staff and any experts, employees, or agents employed by Co-Trustees or their counsel for the purposes of the instant litigation. Co-Trustees’ counsel must use any responses or documents containing Petitioner’s medical information for any purpose other than the instant litigation and counsel must destroy the documents containing medical information at the conclusion of this litigation.

Petitioner’s motion for order designating service addresses is DENIED.

Petitioner’s motion for a judicial determination that David Reuben Stiebel has generally appeared in this case is DENIED.

¹⁰ The Court recognizes that it has authority to order the requested sanctions even though the motion is moot. (See *Sinaiko, supra*, 148 Cal.App.4th at p. 405.) Here, however, the Court has found that the discovery responses were timely served and, moreover, they were served well before the motion was filed on August 17, 2026. Thus, the filing of the motion did not cause Co-Trustees to serve their responses.

Petitioner's motion to compel is DENIED. Petitioner's accompanying request for sanctions is DENIED.

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Calendar Line 7

Case Name: In the Matter of THE ESTATE OF LASCELLE DE BASILY
Case No.: 25PR199694

INTRODUCTION

On April 7, 2025, Regina Neira (“Petitioner”) initiated this action via the filing of a petition for probate of the will of Lascelle Meserve de Basily (“Decedent”), who passed away on February 2, 1989. Petitioner purports to be the holder of a power of attorney from Irma Bard (“Bard”), the sole beneficiary under Decedent’s will. Petitioner was appointed as administrator and letters of administration issued on August 22, 2025.

On April 18, 2026, Petitioner filed a petition for recovery of estate property under Probate Code section 850 (“Petition”). The Petition alleges that Decedent deposited certain works of art with Stanford University prior to 1974, when correspondence allegedly confirmed that the items were not intended to be outright gifts. The art works at issue include two “Spanish polychrome wooden sculptures originating from Andalusia, Spain, dating from the 17th century” and “[e]ighteen paintings and related works of art expressly identified in contemporaneous correspondence as having been retained by Decedent and not included in any completed gift.” (Petition, p. 2:11-15.) The Petition is not separated into causes of action but it seeks recovery of the art described above pursuant to Probate Code section 850.

Currently before the court is a demurrer by the Board of Trustees of the Leland Stanford Junior University (“Respondent”) to each cause of action in the Petition. Petitioner has opposed the demurrer and Respondent has filed a reply.

DISCUSSION

Respondent demurs to each cause of action in the Petition on the ground of failure to state a claim. (Code Civ. Proc., § 430.10, subd. (e).)

I. LEGAL BACKGROUND

A demurrer may be utilized by “[t]he party against whom a complaint [] has been filed” to object to the legal sufficiency of the pleading as a whole, or to any “cause of action” stated therein, on one or more of the grounds enumerated by statute. (Code Civ. Proc., §§ 430.10, 430.50, subd. (a).)¹¹ The court in ruling on a demurrer treats it “as admitting all material facts properly pleaded, but not contentions, deductions or conclusions of fact or law.” (*Piccinini v. Cal. Emergency Management Agency* (2014) 226 Cal.App.4th 685, 688, citing *Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.) “A demurrer tests only the legal sufficiency of the pleading. It admits the truth of all material factual allegations in the complaint; the question of plaintiff’s ability to prove these allegations, or the possible difficulty in making such proof does not concern the reviewing court.” (*Committee on Children’s Television, Inc. v. General Foods Corp.* (1983) 35 Cal.3d 197, 213-214.) In ruling on a demurrer, courts may consider matters

¹¹ All further undesigned statutory references are to the Code of Civil Procedure.

subject to judicial notice. (*Scott v. JPMorgan Chase Bank, N.A.* (2013) 214 Cal.App.4th 743, 751.) Evidentiary facts found in exhibits attached to a complaint can be considered on demurrer. (*Frantz v. Blackwell* (1987) 189 Cal.App.3d 91, 94.)

II. MERITS OF THE DEMURRER

Respondent asserts that the request for recovery of the artwork is barred by the statute of limitations, which it identifies as three years under Code of Civil Procedure section 338. Respondent contends that the statute of limitations accrued, at the latest, when Decedent passed away in 1989, more than 35 years ago. It argues, in the alternative, that the Petition is barred by the doctrine of laches. Respondent relies primarily on *Strasberg v. Odyssey Group* (1996) 51 Cal.App.4th 906 (*Strasberg*), in which Anna Strasberg, the only remaining beneficiary of Marilyn Monroe's personal effects under Monroe's will and administrator of her estate, brought suit for, inter alia, conversion against the successor in interest of Inez Melson, Monroe's business manager, whom Strasberg alleged had taken certain of Monroe's personal items, and others. (*Id.* at p. 910.) A jury found that Melson had converted the personal items in issue after Monroe's death. (*Ibid.*) On appeal, defendants argued that the statute of limitations under Code of Civil Procedure section 338 had run on the conversion claim. (*Id.* at pp. 915-916.) The Court of Appeal held that Melson, "while acting in her capacity as a fiduciary, wrongfully concealed the items she chose to retain from the Marilyn Monroe estate. Accordingly, the statute of limitations was tolled until the beneficiary discovered or ought to have discovered the existence of the cause of action [for conversion]." (*Id.* at p. 917.)

Respondent contrasts *Strasberg* with *Bono v. Clark* (2002) 103 Cal.App.4th 1409 (*Bono*), in which the Court of Appeal distinguished *Strasberg* on the ground that the plaintiff in the case before it knew about the property at issue and knew it was in the hands of the defendant. (*Id.* at p. 1433.) The *Bono* court held that the conversion cause of action therefore accrued when the defendant refused to allow the plaintiff to retrieve her property. (*Id.* at p. 1434.)

Respondent asserts that language in a letter from Decedent to an official of Respondent, as paraphrased in Exhibit I to the Petition, made the sculptures a conditional gift to Respondent unless Decedent retrieved the sculptures before her death or otherwise disposed of them in her will. Relying on *Strasberg* and *Bono*, Respondent contends that it has held the property at issue in a highly public manner since before Decedent's death and that the statute of limitations accrued as to the sculptures upon Decedent's death because assuming that Decedent's will left the sculptures to someone else, Respondent has been openly holding them and has not returned them. As to the paintings, Respondent contends that the paintings were donated to Respondent in 1974 as evidenced by a letter attached to the Petition as Exhibit B. Thus, he contends that the statute of limitations accrued as to the paintings in 1974.

Petitioner counters that the artwork was provided to Respondent "on deposit" creating a bailment and, in such a situation, the statute of limitations does not begin to run until the bailee refuses a demand for return of the property. She relies on several cases, in which the court held that where "the original taking is lawful, the statute of limitations for conversion or claim and delivery does not begin to run 'until the return of the property has been demanded and refused or until a repudiation of the owner's title is unequivocally brought to [her or] his attention.'" [Citations.]] (*Coy v. County of L.A.* (1991) 235 Cal.App.3d 1077, 1088; *Niyya v. Goto* (1960)

181 Cal.App.2d 682, 688; *Ramirez v. Tulare County Dist. Attorney's Office* (2017) 9 Cal.App.5th 911, 938 [“the three-year statute of limitations under Code of Civil Procedure section 338, subdivision (c), would not begin to run until either (i) the return of the property has been demanded and refused or (ii) a repudiation of the owner’s title is unequivocally brought to his or her attention”].) Accordingly, she contends that the statute of limitations did not begin to accrue until she was appointed administrator of the estate and made a request for return of the property, which was refused. The problem with Petitioner’s position is that, in none of the cases she relies on was the bailor deceased and, if the cause of action belonged to Decedent, it would be barred under Code of Civil Procedure section 366.1.¹²

It appears to the Court that none of the authorities cited by either party is directly on point as to the issue of when the statute of limitations began to run. The Court’s own research discovered Civil Code section 1899, et seq., which apply to items on loan to museums and which neither party addresses. In Civil Code section 1899, the Legislature declared, “Many museums have benefited greatly from having property loaned to them for study or display. Problems have arisen, however, in connection with loans for indefinite or long terms, when museums and lenders have failed to maintain contact. Many of these problems could be avoided by a clarification and regularization of the rights and obligations of the parties to loans for indefinite or long terms.” (Civ. Code, § 1899, subd. (a).) Accordingly, if Respondent qualifies as a museum, it would appear that the statute of limitations for such a claim, which is contained in Civil Code section 1899.10, may be the most directly on point. (See Civ. Code, § 1899.1, subd. (c) [“The terms ‘loan,’ ‘loaned,’ and ‘on loan’ include all deposits of property with a museum which are not accompanied by a transfer of title to the property.”]; see also Petition, pp. 3:11-12 [arguing no transfer of title occurred as to the sculptures], 5:23-26 [arguing no transfer of ownership as to the paintings].)

CONCLUSION

The Court hereby CONTINUES the hearing on the demurrer to allow for supplemental briefing regarding Civil Code section 1899.10. The Court hereby requests supplemental briefing regarding the following issues: (1) is Civil Code section 1899.10 applicable in the instant case and (2) does the petition or evidence from which the Court may take judicial notice establish whether Respondent is a museum within the meaning of Civil Code section 1899.1?¹³

¹² That section provides

If a person entitled to bring an action dies before the expiration of the applicable limitations period, and the cause of action survives, an action may be commenced before the expiration of the later of the following times:

(a) Six months after the person’s death.

(b) The limitations period that would have been applicable if the person had not died.

(Code Civ. Proc., § 366.1.)

¹³ Civil Code section 1899.1, subdivision (a) provides, “A ‘museum’ is an institution located in California and operated by a nonprofit corporation or public agency, primarily educational,

The parties or their counsel, as applicable, are ordered to appear at the hearing on this matter, either in person or remotely to select a continued hearing date and to set a briefing schedule.

The Court will prepare the final order.

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scientific, or aesthetic in purpose, which owns, borrows, or cares for, and studies, archives, or exhibits property.”

10:30 Calendar Line 1

Case Name: In the Matter of NHU TRAN

Case No.: 23CV420007

If a petition filed for a minor lacks one parent's consent, that parent must be served with 30-days notice. (Code Civ. Proc. § 1277(a)(4).)

“A defendant may seek relief from default for improper service more than two years after the default judgment as follows: First, a motion to vacate based on the ground of extrinsic fraud or mistake may be made at any time (...); Second, “[a] judgment or order that is invalid on the face of the record ... may be set aside on motion, with no limit on the time within which the motion must be made.” (...) This rule has also been applied when uncontested extrinsic evidence shows that the defendant was never properly served. (...) Third, a judgment or order valid on its face but claimed to be void based on extrinsic evidence may be attacked in an independent equitable action without time limits.” (*California Capital Ins. Co. v. Hoehn* (2024) 17 Cal.5th 207, 215.)

Here, the Petition filed by Mother in 2023 did not list Father as a parent or provide an address for him under Section 7e of the Petition. Father did not sign the Petition, and there was no Proof of Service filed indicating that Father was ever served with the Petition. Mother filed a Declaration (“Mother’s Declaration”) on August 4, 2024, alleging that the Father did not want to be “acknowledged as the father of my child” and “didn’t want his name on the birth certificate.” But Mother’s Declaration failed to provide a reason why she was unable to serve Father or the steps she had taken to locate and serve Father, both of which would have been necessary for an order dispensing with notice.

Mother’s Objection to the current motion, dated August 19, 2026, alleges that Father told Mother on two occasions that she was “free to change Sydney’s last name.” (Mother’s Objection, ¶¶ 4–5.) However, the alleged statements occurred in April 2022 and January 2023, months before Mother filed her August 2023 Petition for Name Change. (See Mother’s Objection, Exs. A–B.) The timing of these statements indicates that Mother had expressed an intent to change Sydney’s last name before April 2022 but had not taken any action on it. Neither alleged statement by Father was made on or near the date Mother filed the August 2023 Petition. Accordingly, the statements do not demonstrate that Father had notice that Mother intended to proceed with the formal name-change petition in August 2023. Moreover, even assuming Father’s statements could be construed as consent to the requested name change in early 2023, Mother did not identify Father as a parent on the Petition, provide Father’s address in section 7(e), or obtain Father’s signature on the Petition. Furthermore, the November 2023 Decree does not indicate that the Court dispensed with Notice.

Based on the above, Mother failed to provide Father with Notice as required by Code of Civil Procedure § 1277(a)(4). Thus, Father did not have an opportunity to be heard, and Father may make a motion to set the judgment aside with no limit on the time with which the motion must be made because the judgment is invalid on the face of the record. Indeed, due process requires that all parties with a significant interest in a matter, such as a parent in the case of a minor child, receive adequate notice and an opportunity to be heard before a judgment is entered. (*Adoption of B.C.* (2011) 195 Cal.App.4th 913, 924-925.) [“Since the interest of a parent in the companionship, care, custody, and management of his children is a compelling

one, ranked among the most basic of civil rights [citations], the state, before depriving a parent of this interest, must afford him adequate notice and an opportunity to be heard.”]

Because the Decree Changing Name is void, Father’s motion to vacate is GRANTED.

The Court will prepare the final order.

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